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Contract



S.O. No. 00123 dt. 23.12.2022

Contract No: GEMC-511687744314570

Generated Date: 21-Dec-2022

Bid/RA/PBP No.: [GEM/2022/B/2636211](#)

Organisation Details

Type: Central PSU
 Ministry: Ministry of Coal
 Department: Materials Management
 Organisation Name: Central Mine Planning and Design Institute Limited
 Office Zone: Jharkhand

Buyer Details

Designation: Asst Manager
 Contact No.: 0651-2792313-
 Email ID: ambrish.chaubey@nic.in
 GSTIN: 20AAACC7475N1ZI
 Address: MATERIAL MANAGEMENT DEPARTMENT, CENTRAL MINE PLANNING AND DESIGN INSTITUTE LIMITED, GONDWANA PLACE, KANKE ROAD, RANCHI- 834008, RANCHI, JHARKHAND-834008, India

Financial Approval Detail

IFD Concurrence: Yes
 Designation of Administrative Approval: GM (MM)
 Designation of Financial Approval: CM (Finance)

Paying Authority Details

Role: PAO
 Payment Mode: GPA - Challan
 Designation: Chief Manager Finance
 Email ID: sb.tiwari@nic.in
 GSTIN: 20AAACC7475N1ZI
 Address: FINANCE DEPARTMENT, CENTRAL MINE PLANNING AND DESIGN INSTITUTE LIMITED, GONDWANA PLACE, KANKE ROAD, RANCHI- 834008, RANCHI, JHARKHAND-834008, India
 Payments shall be made to the seller within 21 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10-days time as provided in clause 12 of GeM GTC)
 Payment Timelines:

Seller Details

GeM Seller ID: B23B180000096647
 Company Name: WIZERTECH INFORMATICS PRIVATE LIMITED
 Contact No.: 09831012321
 Email ID: subhankarc@wizertech.in
 Address: Unit 904, Plot 07, Block- BP, Ahuicl Eco Station, Sector V, Salt lake, Kolkata, WEST BENGAL-700091, -
 MSME verified: No
 MSME Registration number: -
 GSTIN: 19AAACW5570G1Z4

*GST / Tax invoice to be raised in the name of - Consignee

Product Details

#	Item Description	Ordered Quantity	Unit	Unit Price (INR)	Tax Bifurcation (INR)	Price (Inclusive of all Duties and Taxes in INR)
1	Product Name : hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional Brand : hp Brand Type : Registered Brand Catalogue Status : OEM verified catalogue Selling As : OEM verified Reseller Category Name & Quadrant : Desktop Computers (Q2) Model : HP 400 G9 Tower i7 12700 vpro 1621SSD5 Win11P ODD wifi T400 4 GB 23.8" HSN Code : HSN not specified by seller	273	pieces	128,113	NA	34,974,849
Total Order Value (in INR)						34,974,849

Consignee Detail

S.No	Consignee	Item	Lot No.	Quantity	Delivery Start After	Delivery To Be Completed By
	Designation: - Email ID: jc.joshi@coalindia.in					

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1	Contact: 091-8987788900- GSTIN: 20AAACC7475N1ZI Address: MATERIAL MANAGEMENT DEPARTMENT, CENTRAL MINE PLANNING AND DESIGN INSTITUTE LIMITED, GONDWANA PLACE, KANKE ROAD, RANCHI-834008, RANCHI, JHARKHAND-834008, India	hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional	-	108	21-Dec-2022	21-Mar-2023
2	Designation: - Email ID: amit.kumar3636@nic.in Contact: 78660-57822- GSTIN: - Address: CENTRAL MINE PLANNING AND DESIGN INSTITUTE LTD., REGIONAL INSTITUTE - I, G.T. ROAD WEST, ASANSOL, BARDHAMAN, WEST BENGAL-713304, India	hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional	-	32	21-Dec-2022	21-Mar-2023
3	Designation: - Email ID: manisha.kumari@nic.in Contact: 326-2230789- GSTIN: - Address: CENTRAL MINE PLANNING AND DESIGN INSTITUTE LTD., REGIONAL INSTITUTE II, KOYLA BHAWAN COMPLEX, KOYLA NAGAR, DHANBAD, Phone - 9430351106, DHANBAD, JHARKHAND-826006, India	hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional	-	30	21-Dec-2022	21-Mar-2023
4	Designation: - Email ID: rahulsingh.wcl@nic.in Contact: - GSTIN: - Address: CENTRAL MINE PLANNING AND DESIGN INSTITUTE LTD., REGIONAL INSTITUTE IV, KASTURBA NAGAR, JARIPATKA, NAGPUR, NAGPUR, MAHARASHTRA-440014, India	hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional	-	31	21-Dec-2022	21-Mar-2023
5	Designation: - Email ID: saket.sahu@nic.in Contact: 90392-83121- GSTIN: - Address: CENTRAL MINE PLANNING AND DESIGN INSTITUTE LTD., REGIONAL INSTITUTE V, SECL COMPLEX, SEEPAT ROAD, BILASPUR, Phone - 9329575901, BILASPUR, CHHATTISGARH-495006, India	hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional	-	25	21-Dec-2022	21-Mar-2023
6	Designation: - Email ID: venkat.mishra@nic.in Contact: - GSTIN: - Address: CENTRAL MINE PLANNING AND DESIGN INSTITUTE LTD., REGIONAL INSTITUTE VII, PLOT No. E - 4, NEAR GANDHI PARK, AT SAMANTAPURI, P.O. RRL, BHUBANESWAR, Phone - 9438881062, KHORDA, ODISHA-751013, India	hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional	-	32	21-Dec-2022	21-Mar-2023
7	Designation: - Email ID: jaynarayan.mishra@nic.in Contact: - GSTIN: N Address: CENTRAL MINE PLANNING AND DESIGN INSTITUTE LTD., REGIONAL INSTITUTE VI, P.O. JAYANT COLLIERY, SINGRAULI, Phone - 7772897484, SIDHI, MADHYA PRADESH-486890, India	hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional	-	15	21-Dec-2022	21-Mar-2023

Product Specification for hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional

Specification	Sub-Spec	Value
Processor	Processor Make	Intel
	Processor Generation	12
	Number of Cores per Processor	12
	Processor Base Frequency (GHz)	2.1
	Processor Description	Intel Core i7
	Processor Number	Intel Core i7 12700
	Out of Band Management	Intel vPro
	Cache (MB)	25
Motherboard	Chipset Series	Intel Q Series
	Chipset Number	Intel Q670
	Expansion Slots (PCIe x 1) (Number)	1
	Expansion Slots (PCIe x 4) (Number)	0
	Expansion Slots (PCIe x 16) (Number)	1
	Expansion Slots (PCI) (Number)	1

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	Expansion Slots (M Dot 2)	2
Graphics	Graphics Type	Dedicated/Discrete
	Graphic Card Description	NVIDIA T400
	Size of Memory in Case of Dedicated Graphic Card (GB)	4
	Size of VRAM in case of Integrated Graphics (MB)	0
Operating System	Operating System (Factory Pre-Loaded)	Windows 11 Professional
	Recovery Image Media	On Line / Cloud
	OS Certification	Windows
Memory	Type of RAM	DDR4
	RAM Size (GB)	16
	RAM Speed (MHz)	3200
	Total Numbers of DIMM Slots Available	2
	Number of DIMM Slots populated	1
	RAM Expandability up to(using spare DIMM Slots in GB)	64
Storage	Total Number of Internal Bays available	2
	Number of 2 point 5 inches internal Bays	0
	Number of 3 point 5 inches Internal Bays	2
	Number of 2 point 5 Inches Internal Bays Populated	0
	Number of 3 point 5 Inches Internal Bays Populated	1
	Type of Drives used to populate the Internal Bays	HDD,SSD
	Number of Internal Bays populated with HDD	1
	Capacity of each HDD (GB)	2000 @7200 rpm
	Total HDD Capacity (GB)	2000
	Number of Internal Bays populated with SSD	1
	Capacity of each SSD (GB)	1024
	Total SSD Capacity (GB)	1024
	Number of Internal Bays populated with SSHD	0
	Capacity of each SSHD (GB)	NA
	Total SSHD Capacity in addition to 8 GB Flash (GB)	0
	Number of Internal Bays populated with SSED	0
	Capacity of each SSED (GB)	0
	Total SSED Capacity (GB)	0
	Optane Memory (GB)	0
Cabinet	Cabinet Form Factor	Tower (13.1 to 26 Litres)
	Cabinet Volume (Litres)	16.1
	External Bays (Number)	1
	Optical Drive	DVD R/W
	Internal Speaker	Yes
	Audio-in	No
	Audio-out	Yes
	Headphone out	Yes
	Microphone-in	Yes
Connectivity	Wireless Connectivity	Yes
	If Yes, Type of Wireless Connectivity	Wi-Fi 6 AX200 + Bluetooth 5.0
	Number of Ethernet Ports	1
	Type of Ethernet Ports	Intel 10/100/1000 Integrated Network Ports for vPRO
	Bluetooth Connectivity	Yes
	If Yes, Version of Bluetooth Available	5.1

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Ports	Number of USB Version 2 Point 0 Ports	2
	Number of USB Version 3 point 0 / 3 point 1, Gen 1 Ports	3
	Number of USB Version 3 point 1, Gen 2 Ports	3
	Number of USB Type C Ports	1
	Number of Serial Ports	0
	Number of Parallel Ports	0
	Number of VGA Ports	0
	Number of HDMI Ports	1
	Number of DP Ports	1
Monitor	Model of the Monitor	23.8"
	Monitor Technology	IPS
	LED Backlit Monitor Size (INCHES)	23.8
	Monitor Resolution (PIXELS)	1920x1080
	TCO Certification for Monitor	8.0
	Number of VGA Ports in the Monitor	1
	Number of HDMI Ports in the Monitor	1
	Number of Display Ports in the Monitor	1
	Availability of Webcam integrated with Monitor	Yes
	If Yes, Resolution of Webcam	FHD
	Availability of Speakers integrated with Monitor	Yes
	If Yes, Number of Speakers available	2
Power	Power Supply Capacity (Watt)	260
	Minimum Power Efficiency Range (%)	90 - 94
Certification	ROHS Compliance	Yes
	BEE / Energy Star for the given Model	Yes
Input Devices	Mouse Connectivity	Wired
	Type of Mouse	Optical Scroll
	Keyboard Connectivity	Wired
	Type of Keyboard	Standard
Operating Conditions	Minimum Operating Temperature	5
	Maximum Operating Temperature	35
	Minimum Operating Humidity (%RH)	5
	Maximum Operating Humidity (%RH)	90
Warranty	On Site OEM Warranty (Year)	5

Buyer Defined Additional Specification for hp Intel Core i7 12700 16 GB/ 2000 GB HDD/ Windows 11 Professional

Specification	Value
1. Chipset, Wireless & Bluetooth Connectivity	Only Intel Q670 or higher is allowed. Wireless & Bluetooth Connectivity should be available.
2. Motherboard	Original Intel motherboard, or OEM Motherboard with the PC Manufacturer's name/logo embossed on the motherboard.
3. PC, Mouse & Keyboard	CPU, Monitor, Mouse & Keyboard should be of same OEM make.
4. Certifications / Compliance	RoHS, BEE / Energy Star, UL / STQC "S" Mark, TCO '08 or higher, Windows Certification with Documentary Evidence for all.
5. Brochure/Datasheet	Brochure/Datasheet of the product offered should be available in Public Domain.

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Terms and Conditions

1. Special terms and conditions- Version:2 effective from 09-04-2021

1.1 'Local content means the amount of value added in India which shall, unless otherwise Prescribed by the Nodal Ministry, be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value and percent.

'Class-I local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, has local content equal to or more than 50% as defined under this Order

'Class-II local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, has local content more than 20% but less than 50%, as defined under this Order

2. General Terms and Conditions-

2.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.

2.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable

3. Buyer Added Bid Specific Terms and Conditions-

3.1 Generic:

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

3.2 Generic:

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3.3 Generic:

Bidders shall quote only those products (Part of Service delivery) in the bid which are not obsolete in the market and has at least 7 years residual market life i.e. the offered product shall not be declared end-of-life by the OEM before this period.

3.4 Generic:

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3.5 Generic:

Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. [Click here to view the file](#)

3.6 Generic:

Data Sheet of the product(s) offered in the bid, are to be uploaded along with the bid documents. Buyers can match and verify the Data Sheet with the product specifications offered. In case of any unexplained mismatch of technical parameters, the bid is liable for rejection.

3.7 Generic:

Installation, Commissioning, Testing, Configuration, Training (if any - which ever is applicable as per scope of supply) is to be carried out by OEM / OEM Certified resource or OEM authorised Reseller.

3.8 Generic:

IT equipment shall be IPv6 ready from day one.

3.9 Generic:

Malicious Code Certificate:

The seller should upload following certificate in the bid:-

(a) This is to certify that the Hardware and the Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to :-

- (i) Inhibit the desires and designed function of the equipment.
- (ii) Cause physical damage to the user or equipment during the exploitation.
- (iii) Tap information resident or transient in the equipment/network.

(b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software.

3.10 Generic:

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

3.11 Generic:

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

3.12 Generic:

Upload Manufacturer authorization: Wherever Authorised Distributors are submitting the bid, Manufacturers Authorisation Form (MAF)/Certificate with OEM details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid.

3.13 Generic:

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate

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The Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

3.14 Inspection:

Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance:

Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC) ICT Division, CMPDI (HQ) or their authorised representative

Post Receipt Inspection at consignee site before acceptance of stores: ICT Division, CMPDI (HQ) or their authorised representative

3.15 Inspection:

Pre-dispatch inspection at Seller premises (Fee/Charges to be borne by the BUYER): Before dispatch, the goods will be inspected by Buyer / Consignee or their Authorized Representative or by Nominated External Inspection Agency (independently or jointly with Buyer or Consignee as decided by the Buyer) at Seller premises (or at designated place for inspection as declared / communicated by the seller) for their compliance to the contract specifications. Fee/Charges taken by the External inspection Agency and any external laboratories testing charges shall be borne by the Buyer. For in-house testing, the Sellers will provide necessary facilities free of cost. Seller shall notify the Buyer through e-mail about readiness of goods for pre-dispatch inspection and Buyer will notify the Seller about the Authorized Representative/ Nominated External Inspection Agency and the date for testing. The goods would be dispatched to consignee only after clearance in pre-dispatch inspection. Consignee's right of rejection as per GTC in respect of the goods finally received at his location shall in no way be limited or waived by reason of the goods having previously been inspected, tested and passed by Buyer/ Consignee or its Nominated External Inspection Agency prior to the goods' shipment. While bidding, the sellers should take into account 7 days for inspection from the date of email offering the goods for inspection. Any delay in inspection beyond 7 days shall be on the part of the buyer and shall be regularised without Liquidated Damages. When there is requirement of submission the advance sample, the seller shall inform the buyer promptly through emails about the date of submission of sample to the buyer nominated Inspection agency.

3.16 Forms of EMD and PBG

Bidders can also submit the EMD with Account Payee Demand Draft in favour of CMPDIL payable at Ranchi.

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

3.17 Forms of EMD and PBG

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of CMPDIL payable at RANCHI. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

3.18 Scope of Supply:

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

3.19 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3.20 Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

Procurement against this tender shall be made only for proven items from established & proven sources, who fulfils the following criteria:

(i) Offers of the Bidders, who are past suppliers to Mining Industry and / or other Industries (Private or Government Department/ Public Sector Undertaking - Indigenous or Global), will be considered eligible for participation, if they have supplied* the tendered item / similar item, during the preceding 5 years from the date of tender opening and their performance has been found satisfactory.

***For consumables/Spares/Software: At least 20 % of required quantity of this tender.**

***For Equipment: At least one number of the Equipment.**

(i)(a) Bidders, who are past suppliers to CMPDI for the tendered / similar item, should upload copies of supply orders in support of their eligibility as stipulated above.

(i)(b) Bidders, who are new for CMPDI for the tendered / similar item, should upload copies of supply orders along with an undertaking, on the Letter Head of the Bidder, that the said supply order has been successfully executed and performed satisfactorily for one year in support of their eligibility as stipulated above.

(ii) Bidders are required to submit a Self-Certificate in the following format, along with the Proof of payment against the Purchase Order(s)/ Rate Contract(s) and Commissioning Certificate(s) (in case of Equipment, P&M, etc. where installation & commissioning is required):

"The items covered in the Purchase Order(s)/ Rate Contract(s) copies enclosed with our offer have been fully executed and have performed satisfactorily as per the provisions of respective Purchase Order(s)/ Rate Contract(s) for minimum one year from the date of commissioning and all the complaints/ claim(s) lodged by the purchaser, if any, have been attended to and no complaints/ claim(s) are pending."

In case, any specific Purchase Order(s) has/have not been fully executed and any complaint/claim is pending, then details of such cases to be categorically mentioned with the reasons thereof so that decision making is in clear perspective without any hidden facts in the subject matter.

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The authenticity of the self-certificate as well as other documents submitted/uploaded by the bidder will solely be their responsibility and appropriate action will be taken by CMPDI if it is subsequently found to be misleading/false/forged.

Note: Similar Equipment shall be such Equipment, which fulfils the following:

(a) Performs almost identical operations as the quoted model.

(b) Should be equal to or higher than the tendered capacity.

(c) Uses sub-components, sub-systems and major assemblies of substantially similar design & construction to the model quoted - only rating specifications may differ (Lower or Higher)

(iii) Acceptance Criteria for similar Equipment:

In case, the bidder claims provenness of the quoted model based on similar equipment, the similar equipment should have performed satisfactorily for a minimum period of one year from the date of commissioning and the quoted model should have worked for a minimum period of six months from the date of commissioning within the window period of 5 years.

In case the bidder claims provenness of the quoted model based on similar equipment and the similar equipment has performed satisfactorily for a minimum period of one year from the date of commissioning, but the quoted model has not worked for a minimum period of six months, the offer may be accepted subject to the conditions mentioned under here under:

a. The quoted model should have been designed, manufactured and supplied to the end-user but has not been commissioned or if commissioned, has not completed six months of operation after the commissioning. Documentary evidence for past supply of the quoted model is to be provided along with the offer.

or

The quoted model is an upgraded version of the existing model with improved and the latest drive line / system etc. and has not been manufactured and/or supplied earlier. In such case, the basic model should remain the same. Documentary evidence of past supply of the existing model whose upgraded version has been offered, is to be provided along with the offer.

b. (i) The successful bidder will be allowed to supply the quantity (or quantity of the first lot) as indicated in Schedule of Requirement. (ii) The firm shall be required to furnish additional Performance Bank Guarantee of 100% of the total landed 'value of equipment along with spares & consumables for warranty period for the quantity.

c. On satisfactory performance of all the equipment/first lot (if applicable) for one year from the date of commissioning [to be certified by the Head of the User Deptt.], clearance shall be obtained from the order issuing authority for supply of the remaining quantity, if any, as per Schedule of Requirement.

d. The additional 100% Performance Bank Guarantee shall be returned only after satisfactory performance of all the equipment/first (if applicable) lot for one year from the date of commissioning.

e. The original 10% PBG for the total contract value will be retained for entire contract period.

Note:

In case of unsuccessful performance of the equipment/first lot (if applicable) supplied by the firms who qualify as per above clauses, the following shall be applicable:

i) The 100% Additional Performance Bank Guarantee for the equipment/first lot (if applicable) shall be encashed by CMPDI. Consequent upon the encashment of the 100% Bank Guarantee due to non-achievement of stipulated minimum availability percentage, the Supplier shall take back the equipment at no cost to the Purchaser and the contract for the balance quantity shall be cancelled.

ii) The original 10% performance bank guarantee shall be returned to the supplier after recovery of penalty for non-achievement of guaranteed availability in respect of equipment/first lot (if applicable).

iii) The performance of any individual equipment/first lot (if applicable) under this clause shall not be considered for provenness in future tenders of CIL & subsidiaries for any capacity of this type of equipment.

iv) In case of equipment imported under Project Concessional Duty (PCD), the amount of Customs Duty Concession i.e. the differential amount of Normal Customs Duty (NCD) and PCD availed during import shall be recovered from the supplier with interest for refund to the Customs Authorities. The supplier shall deposit such amount to the purchaser on demand else the same shall be recovered from the Security Deposit Bank Guarantee / Performance Bank Guarantee of the supplier.

Prior experience - prior turnover criteria for Startup, Micro and Small Enterprises (MSEs) in Public Procurement:

(i) Prior experience and prior turn over criteria is not applicable for Startup & MSEs in respect of either of the following situations and no further documents regarding proven-ness will be required to be submitted by this category of Bidders.

a. If Bidders have submitted documents to prove the Startup / MSE status for the tendered item without certificate towards quality, assurance and capability from some authority like MSME, NSIC, etc., the Tender Inviting Authority, if required, may assess the techno-commercial capability of the venders to manufacture and

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Vendor goods as per the prescribed quality and technical specification before awarding contract to them. For this purpose, a 'PROFORMA for Equipment and Quality Control' (refer Annexure-I attached as Buyer uploaded ATC document) has been enclosed in the tender documents and such MSEs/ STARTUPS should submit the details of plant & machinery, quality control arrangements, etc., in the above PROFORMA along with their bids for verification of their technical capability.

If required, a techno-commercial team of the organization may visit the manufacturing unit of the vendor without any undue delay for quick finalization of the tenders.

b. If favorable technical capability reports obtained earlier on such firms for supply of the item in question as per the required specification is available, these may be considered, provided date of such reports is not more than one year from the date of opening of bids.

In case there is deficiency in technical capacity of the firm, the same shall be communicated to them by the Tender Inviting Authority for improvement in the quality of their product for future tenders, clearly indicating that their offer cannot be considered for relaxation against the tender in question and to avoid any future complications. The issues relating to Technical capability may be decided by the Head of the Technical Department.

c. If Bidders have submitted documents to prove the startup / MSE status for the tendered item and whose products are ISI marked / DGMS approved / covered under DGS&D Rate Contracts on them / current holding Rate Contracts with CIL or its Subsidiary for supply of the tendered item / supplied and proven in CIL or its Subsidiary Companies / Proven product of the Ancillary unit of a Subsidiary Company of CIL, they will be required to submit the applicable related documents, duly self-attested, for relaxation: -

- Valid BIS Marking License for the quoted items on them.

OR

- Rate contract as issued by CIL / any other Subsidiary for the quoted items on them.

OR

- Valid DGMS Approval certificate for the quoted items on them.

OR

- Proven Ancillary certificate issued by Subsidiary Companies for the quoted items on them.

The Document (s) / Certificate (s), by the Bidders for ISI marking and DGMS approval for any relaxation should be valid as on date of tender opening and a copy of such document / certificate valid as on date of supply, duly self- attested, must accompany their bill(s).

(i) N.B.:

a. Definition and Eligibility of Startup shall be in line with OM vide letter no. F-20/2/2014 PPD (pt.) Dtd. 25.07.2016 of Under Secretary to GOI, Ministry of Finance, Department of Expenditure, Procurement Policy Division, New Delhi, with subsequent amendments, if any.

b . Definition of MSEs shall be as per Public Procurement 2012, with subsequent amendments, if any.

Additional Buyer Specific terms & conditions :-

- 1) Posting of one Service Engineer on behalf of the successful vendor, at CMPDI(HQ), Ranchi is mandatory during working hours, throughout the warranty period. The service engineer so posted would be responsible for proper upkeep of all the machines to be supplied & installed at CMPDI(HQ) & RI-3, CMPDI Ranchi. Also, the service engineer would coordinate with the concerned service team of Other respective Regional Institutes for breakdown maintenance of machines installed at the respective Regional Institute. Absence of the service engineer for more than 2 working days in a month would be taken into consideration for calculation of Penalty @ ` 500/- per working day.
- 2) Onsite Comprehensive Warranty services would be provided by the seller at all the consignees end (CMPDI(HQ) & all Regional Institutes) in co-ordination with the OEM.
- 3) Comprehensive Warranty shall include supplies of spares, services, software support and patch management for OS(formatting of HDD & reloading of OS if required), for maintaining availability of more than 95%.
- 4) Scope of installation will include logical partitioning of HDD, OS and Application S/W (MS office, Anti Virus etc.) installation, IP address configuration, Data transfer from old PC (if required) etc.
- 5) Details of Authorized Service Centres such as Complete Address, Name of the Contact Person(s) with Phone Numbers from where the Bidder will provide on site comprehensive warranty services for the machines installed at the respective location (CMPDI(HQ) & all Regional Institutes, is to be furnished by the bidders in their letter head.
- 6) Breakdown should be attended within twenty four hours from the receipt of information at the local office of the Supplier.
- 7) 95% availability (uptime) for each System on monthly basis should be guaranteed. If the machine downtime is expected to continue over for a long time, the defective System / Components shall be replaced by a suitable System / Components of the same or higher configuration.
- 8) System downtime will be reckoned only during the working hours on working days. Down time beyond these hours on a working day would be excluded. For example, if the down time starts at 12.00 hours on a day and extends upto 11.00 hours the following working day, the down time would be calculated as below:
 - a) For Working Hours : 09:30 hrs. - 17:30 hrs.(8 hours)
First day from 12.00 hrs to 5.30 hrs, equal to 5.30 hours

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Second day from 9.30 hrs to 11.00 hrs, equal to 1.30 hours
 Total down time = 7 hours
 b) For Working Hours : 10:00 hrs. - 17:00 hrs.(7 hours)
 First day from 12.00 hrs to 5.00 hrs, equal to 5.00 hours
 Second day from 10.00 hrs to 11.00 hrs, equal to 1.00 hours
 Total down time = 6 hours

- 9) The availability percentage shall be calculated for each calendar month. Penalty will be imposed on pro-rata basis, if the availability falls below 95 % thus

$$(95\% - \text{Actual availability}) \times (\text{Total Unit Price} / 200)$$

$$\text{Penalty} = \frac{\text{Total Unit Price} / 200}{95\%}$$

- 10) Actual availability percentage for each machine will becalculated as follows.

$$\text{Actual availability} = \frac{\text{No of working days In the month} \times 8 - \text{Downtime hours during the month}}{\text{No. of working days in the month} \times 8} \times 100$$

No bonus or additional sums shall be payable if the actual availability is more than 95%. Penalty for any month to be imposed will be calculated in the basis of the following table:

Availability percentage (rounded)	Penalty
95% and above	Nil
85% to 94%	As per rate calculated in clause 9 & 10
50% to 84%	Double the calculated amount as per rate calculated in clause 9 & 10
Below 50%	Total Unit Price / 200

Penalty amount so calculated (monthly), would be communicated to the supplier after the end of each quarter. The supplier may deposit the amount with CMPDI and intimate the same to CMPDI(HQ) ICT Division with documentary evidence. Otherwise, CMPDI would have the right to adjust the total accumulated penalty amount against PBG submitted by the vendor after completion of the contract period of 5 years. If at any stage within the contract period the total recoverable accumulated penalty amount crosses the PBG limit, the PBG would be encashed and the vendor would be liable to resubmit another PBG of same value as submitted earlier. The same process would continue till completion of the contract period of 5 years.

- 11) Uptime will be for the entire system. i.e. in case, part of the system is out of order such that no useful output can be obtained from the system, the total system shall be considered to be under breakdown. If the machine is not bootable, it will be considered as breakdown. Part of the system, as narrated elsewhere in the contract, includes keyboard, mouse, monitor, hard disk drives etc.

3.21 Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

3.22 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

3.23 Warranty:

Warranty period of the supplied products shall be as given in specifications from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

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Subject: Procurement of 273 nos. High-end Desktop PC meant for CMPDI HQ and RIs, through GeM Portal.

Please find attached herewith supply order copy (contract) placed on M/s. Wizertech Informatics Pvt. Ltd. Kolkata through GeM portal.

Contract no.: GEMC-511687744314570 dated 21-Dec-2022

SAP PO No.: 5100006129 dated 21-Dec-2022

(Ambrish Chaubey)
AM (MM)

(Deepak Kumar)
CM (MM)

प्रतिलिपि प्रेषण :-

1. मुख्य सतर्कता अधिकारी, सी एम पी डी आई, रॉची ।
2. क्षेत्रिय निदेशक, सी एम पी डी आई क्षेत्रिय संस्थान – I, आसनसोल ।
3. क्षेत्रिय निदेशक, सी एम पी डी आई क्षेत्रिय संस्थान – II, धनबाद ।
4. क्षेत्रिय निदेशक, सी एम पी डी आई क्षेत्रिय संस्थान – IV, नागपुर ।
5. क्षेत्रिय निदेशक, सी एम पी डी आई क्षेत्रिय संस्थान – V, बिलासपुर ।
6. क्षेत्रिय निदेशक, सी एम पी डी आई क्षेत्रिय संस्थान – VI, सिंगरौली ।
7. क्षेत्रिय निदेशक, सी एम पी डी आई क्षेत्रिय संस्थान – VII, भुवनेश्वर ।
8. महाप्रबन्धक (सामग्री प्रबन्धन), सी एम पी डी आई, रॉची ।
9. महाप्रबन्धक (आई सी टी), सी एम पी डी आई, रॉची ।
10. महाप्रबन्धक (वित्त), सी एम पी डी आई, रॉची ।
11. विभागाध्यक्ष (ई पी एवं सी एम), सी एम पी डी आई, रॉची ।
12. डिपो अधिकारी, सीएमपीडीआई, रॉची ।
13. सचिव – निदेशक (तक.) (सी आर डी) महोदय के सादर सूचनार्थ ।
14. मास्टर संचिका ।
15. Shri Bipin Bihari Mallick, IAS (Retd.), 293, Naval Technical officers CGHS, Sector -22, Dwarka, New Delhi. PIN – 110077. E-mail ID: bipinmallick@gmail.com
16. Shri Gopal Krishna, IAS (Retd.), D-52, Ground Floor, Near Red Roses Public School, Saket, New Delhi. PIN - 110017. E-mail ID: gkrishna549@gmail.com

नोट :- उक्त आदेश जारी करने पर सक्षम अधिकारी का अनुमोदन दिनांक 19.12.2022 एवं वित्तिय सहमति दिनांक 19.12.2022 (द्वारा डायरी संख्या E-501271) को प्राप्त है ।

संदर्भ :- सामग्री प्रबन्धन (क्रय) विभाग के इंडेंट निबंधन संख्या एमएम/इंडेंट/26, दिनांक 04.08.2022 एवं बजट प्रमाण संख्या C/120113/20000060/14/8, वित्तिय वर्ष 2022-23, दिनांक 25.11.2022 व C/120113/20000060/14/9, वित्तिय वर्ष 2022-23, दिनांक 23.12.2022 ।

Performance Security / ePBG: Applicable in this contract (@ 10 % of contract value for duration of 62 months).

AM (MM)

CM (MM)